

MOTION FOR ORDER THAT MATTERS IN REQUEST FOR ADMISSIONS BE DEEMED ADMITTED

TENTATIVE RULING: The motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiff moves, pursuant to Code of Civil Procedure sections 2023 and 2033.280, for an order that the genuineness of any documents and the truth of all specified matters in Plaintiff's Requests for Admissions, Set. No. 1 be deemed admitted. The Motion is made on the grounds that Defendant failed to serve responses to the RFAs.

"If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted." (§ 2033.280, subd. (b).) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (§ 2033.280, subd. (c).)

Plaintiff submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Veronika Rakhlina, at ¶¶ 2, 4.) As such, the Court orders that the genuineness of the documents and the truth of the matters specified in the RFAs are deemed admitted.

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Julian Murillo v. Nissan North America, Inc.

24CV001704

PLAINTIFF'S MOTION FOR ATTORNEY'S FEES

TENTATIVE RULING: The matter is CONTINUED to September 23, 2026, at 8:30 a.m. in Dept. A. Prior to the next hearing, moving party shall file and serve an amended notice which includes proper notice of the Court's tentative ruling system as required by Local Rule 2.9.

The Order to Show Cause re: Dismissal is continued to December 15, 2026, at 8:30 a.m. in Dept. A.

DEFENDANT’S DEMURRER TO PLAINTIFF’S FIRST AMENDED COMPLAINT

TENTATIVE RULING: The demurrer is OVERRULED. Defendants are granted 10 days’ leave from notice of entry of order to answer the FAC (defined below). (See Rules of Court, rule 3.1320(g).) Plaintiff is directed to provide notice of entry of order.

Defendants Estate of Jack Malan and Chris Malan, individually, as successor in interest to Jack Malan, deceased, and as successor Trustee of the Malan Family Trust (“Defendants”) demur, pursuant to Code of Civil Procedure section 430.10, subdivision (e),¹ to the First Amended Complaint (“FAC”) filed by Plaintiff Angelica Hernandez (“Plaintiff”). Defendants so move on the ground that the FAC fails to state facts sufficient to constitute a cause of action because the entire action is barred by the applicable statute of limitations.

As a preliminary matter, the Court’s reference to FAC includes both (1) the FAC filed on March 17, 2026, naming defendant “Estate of Jack Malan, by and through its Personal Representative” and DOES 1-100, and (2) the Amendment filed April 30, 2026, substituting DOE 1 as “Chris Malan, individually and as Successor in Interest to Jack Malan, deceased, and as Successor Trustee of the Malan Family Trust.” The Court notes that Plaintiff did not obtain leave of Court for her DOE amendment to the FAC. That said, Plaintiff raised her DOE amendment in opposition to Defendants’ previous motion to quash, and Defendants implicitly consented to its filing by failing to file a Reply. (See 5/12/26 Minute Order.) As such, the Court elects to allow the April 30, 2026 DOE Amendment to remain in the Court file. Plaintiff’s counsel is reminded that Plaintiff must obtain leave of Court before filing any further amendments to her pleadings. (See § 473.)

The FAC alleges two causes of action: one for Motor Vehicle Negligence, and another for General Negligence. The action arises from a motor vehicle accident that is alleged to have occurred on or about October 20, 2023. (FAC ¶ 11.) The parties do not dispute that the applicable statute of limitations for personal injury claims is two years. (See § 335.1.)

Defendants appear to concede that, based on the relation back doctrine, the relevant date for statute of limitations purposes is the filing date of the original complaint on October 21, 2025. Defendants argue that the complaint and all superseding amendments are time-barred, as the last day the action could have been filed was October 20, 2025, two years after the motor vehicle accident, and one day before the complaint was actually filed.

In Opposition, Plaintiff points out, among other things, that the FAC alleges decedent “Jack Malan had passed away prior to the commencement of this action.” (FAC, ¶ 7.) Plaintiff argues that this allegation is sufficient to establish that Jack Malan died, at the very latest, on October 20, 2025 (the day before the complaint was filed). Thus, Plaintiff argues, Jack Malan died at the very latest on the last day the action could have been filed under section 335.1. In these circumstances, Plaintiff argues that Probate Code section 551 extends the statute of

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.